

Court No. - 2

Case :- WRIT - C No. - 4156 of 2022

Petitioner :- Abdhesh Kumar

Respondent :- Executive Engineer Edd Bisalpur And Another

Counsel for Petitioner :- Satendra Kumar Sharma

Counsel for Respondent :- Mukesh Kumar Singh

Hon'ble Dr. Kaushal Jayendra Thaker,J.

Hon'ble Ajai Tyagi,J.

Pleadings be completed on or before 4.4.2022.

List on 4.4.2022 as fresh.

Order Date :- 25.2.2022

Mukesh

Court No. - 3

Case :- WRIT - C No. - 4156 of 2022

Petitioner :- Abdhesh Kumar

Respondent :- Executive Engineer Edd Bisalpur And Another

Counsel for Petitioner :- Satendra Kumar Sharma

Counsel for Respondent :- Mukesh Kumar Singh

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the parties.

2. This writ petition has been filed praying for the following reliefs :

"i) Issue a writ, order or direction in nature of certiorari quashing the impugned demand notice dated 04.09.2021 issued by respondent no.1 i.e. Executive Engineer, Electricity Distribution Division, Bisalpur.

ii) Issue a writ, order or direction in nature of mandamus commanding the respondent no.1 to correct the electricity bill of the petitioner

(iii) Issue a writ, order or direction in the nature of mandamus directing the respondent no.1 to decide the representation dated 21.09.2021 of petitioner."

3. Shri Mukesh Kumar Singh, learned counsel for the respondents/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent no.1 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.1 in accordance with law within

next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 20.5.2022
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